

TENTATIVE RULINGS**9/10/2026****02:00 PM**

100	Burns vs. Power Paragon, Inc. 2021-01197621	Final Accounting The court finds all settlement distribution efforts are fully concluded. The administrator's final report (ROA 164) is thus approved, and the court's file is closed. Plaintiff to give notice of the court's ruling, including to the LWDA, within five (5) calendar days, and file proof of service.
101	Hsieh vs. Christ Church By The Sea 2025-01530561	1. Demurrer to Cross-Complaint 2. Motion to Strike Cross-Complaint 1. Demurrer Plaintiffs and Cross-Defendants Denise Hsieh, Cera Norton, Merrick Chepo, Laura Ingersoll, Sean Jarne, Jen Swisher, Kaylee Mason, Meghan Meek, Megan Gill, Nicci Dewez, Amanda Padilla, Sean Finegan, Shai Reynolds, Monica Stasiak, Nicole Oudyk, and Ben Hogan's (collectively, "plaintiffs") unopposed Demurrer to the Second Cause of Action for Defamation in the Cross-Complaint ("XC") of Defendants and Cross-Complainants Christ Church by the Sea and Christ Church by the Sea Children's Center (collectively, "defendants") is OVERRULED . <u>Procedural Issue</u> Per C.C.P. § 430.41(a)(3), the "demurring party shall file and serve with the demurrer a declaration" concerning the parties' meet and confer efforts. Plaintiffs have failed to file any such declaration. <u>Legal Authority</u> In evaluating a demurrer, the court is guided by long-settled rules. The court "treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law." Serrano v. Priest (1971) 5 Cal.3d 584, 591. "The complaint must be construed liberally by drawing reasonable inferences from the facts pleaded." Rodas v. Spiegel (2001) 87 Cal.App.4th 513, 517. "Further, [the Court] gives the complaint a reasonable interpretation, reading it as a whole and its parts in their context." Blank v. Kirwan (1985) 39 Cal.3d 311, 318. "To survive a demurrer, the complaint need only allege facts sufficient to state a cause of action; each evidentiary fact that might eventually form part of the plaintiff's proof need not be alleged." C.A. v. William S. Hart Union High School Dist. (2012) 53 Cal.4th 861, 872.